

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

NOTICE UNDER CODE OF CIVIL

PROCEDURE SECTION 128.7, SUBDIVISION

(c)(1), AND DECLARATION OF PLAINTIFF

(Serve on defendants and defense counsel identified on the
preceding caption; **not for filing with the Clerk** until subdiv. (c)(1)
prerequisites are satisfied absent withdrawal/correction of
challenged papers)

**Cross-noticed for pending defense hearings (this case, Dept.
302):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 13, 2026, 9:30 a.m.; Dept. 302; Hon. Joseph M. Quinn
(3)	Strike (Code Civ. Proc., § 436)	May 19, 2026; Dept. 302; Hon. Joseph M. Quinn
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **I. SAFE HARBOR NOTICE UNDER SECTION 128.7, SUBDIVISION (C)(1)**

2 **IMPORTANT: SERVICE ONLY.** Plaintiff Franciscus Dylan Rosario submits this Notice and
3 Declaration pursuant to Code of Civil Procedure section 128.7 only for **service** on offending parties
4 and their counsel. This Notice is **not a filing** for clerk registration for sanctions purposes unless
5 and until any motion that may follow complies with subdivisions (c)(1) (twenty-one calendar day
6 harbor) and (j) (service), and Plaintiff elects to file such a motion thereafter.

7 **Notice to offending parties and counsel.** Plaintiff gives notice pursuant to Code of Civil Proce-
8 dure section 128.7, subdivision (c)(1), concerning papers and contentions Plaintiff contends violate
9 section 128.7, subdivision (b), including subdivisions **(2)** and **(3)** and factual grounds Plaintiff doc-
10 uments in Plaintiff's explanatory memorandum and omnibus filings. This Notice is conditioned on
11 Plaintiff's contemporaneous service of the explanatory memoranda and lodged authorities listed in
12 the Exhibit Key below, which Plaintiff expects to cite as portions of supporting papers accompa-
13 nying any contemplated motion for sanctions (section 128.7, subd. (j)).

14 **Twenty-one calendar-day safe harbor.** Under subdivision (c)(1), a motion for sanctions under
15 section 128.7 ordinarily *must not be filed with nor presented to the court* unless, after **service** upon
16 the offending party of *the motion and any supporting papers*, the challenged papers or positions are
17 **not withdrawn or appropriately corrected within twenty-one calendar days**. By this Notice
18 Plaintiff triggers that harbor concerning the challenged matters described herein. Plaintiff **reserves**
19 **all rights**; nothing herein waives any motion, objection, citation to authority, sanctions request in
20 other vehicles, regulatory complaint, fee motion, opposition, amendment, judicial notice objection,
21 remedy, appeal, extraordinary writ petition, tolling or discovery argument expressly or impliedly
22 waived.

23 **Challenged matters (within the meaning of subdivisions (f) through (j)).** In this Court (Dept.
24 302), Plaintiff identifies defendants' operative **special motion(s) to strike** under Code of Civil
25 Procedure section 425.16; **motion(s) under section 436** invoking privilege or immunity themes
26 inappropriate to statutory strike briefing; associated **demurrers** incorporating parallel theories;
27 defenses and filings in the **MFL/SAC** sequence on calendar Apr. 30, 2026 referencing protected-
28 activity overlays; replies and oppositions; and affirmative defenses misaligning Plaintiff's lodged

1 statutory excerpts with defense framing. Plaintiff incorporates by reference the caption cross-
2 notice calendar for Dept. 302.

3 **Exhibit Key — contemporaneously served explanatory documents (CGC-25-631802).** Plain-
4 tiff concurrently serves counsel of record printed or electronic duplicates of:

ID Document (electronic basename)

A MEMORANDUM-42517-425-17C-CROSS-HEARING-802.pdf

B NOTICE-LODGING-SUPPL-AUTH-42517-CROSS-HEARING-802.pdf

C OMNIBUS-OPPOSITION-BLACKLETTER-CONTRADICTIONS-802.pdf

D RJN-SUPPLEMENTAL-42517-CROSS-HEARING-802.pdf

E SUPPL-MEMO-CUSTOMER-DOCTRINE-42517-CROSS-HEARING-802.pdf

6 **Rationale for contemplated sanctions briefing.** Plaintiff’s contemporaneously served documents
7 (Exhibits A through E in the Exhibit Key above) articulate why Plaintiff believes the categorical
8 bar of Code of Civil Procedure section 425.17, subdivision (c), applies to defendants in this com-
9 mercial insurer dispute with Plaintiff; delineate asserted black-letter inconsistencies in defense au-
10 thorities; summarize third-party claimant duty doctrine pertinent to pleadings deficiencies; repro-
11 duce noticed statute text supporting plain-meaning analysis; and provide lodging cross-references
12 pursuant to Rule of Court 3.1306(c).

13 **Compliance / correction invitation.** Within twenty-one calendar days following service of this
14 Notice (and summarized supporting memoranda), defendants may voluntarily **withdraw or ap-**
15 **propriately correct** challenged motions or papers described above and in Exhibits A–E absent
16 prejudice to Plaintiff’s merits opposition calendars.

17 **Service (subdivision (j)).** Plaintiff provides this harbor notice as required written preclearance
18 attaching sufficient summary of contemplated grounds pursuant to subdiv. (j). Proof of personal
19 or electronic transmission will be memorialized conforming Rules of Court 2.250–2.259 when
20 applicable.

21 **II. DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

22 I, FRANCISCUS DYLAN ROSARIO, declare:

23 1. **Identity.** I am Plaintiff in Case No. CGC-25-631802, Superior Court of California, San

1 Francisco County, acting in propria persona. I declare from personal knowledge as to Exhibit
2 preparation and belief as to legal significance after reasonable diligence.

3 2. **Purpose.** I execute this Declaration to authenticate Exhibit batch service accompanying sub-
4 div. (c)(1) Notice for this case numbering.

5 3. **Supporting documents.** I directed preparation and contemporaneous transmission of Ex-
6 hibits A–E using filenames in Section I (Exhibit Key tabular); they faithfully mirror Plaintiff
7 filed / lodged drafts except non-substantive formatting.

8 4. **Defense papers familiarity.** I reviewed defendants’ operative motion filings (Anti-SLAPP,
9 section 436 strike, related demurrer lines, SAC/MFL filings) pertinent to Dept. 302 calendar
10 and summarized perceived deficiencies in Plaintiff’s Exhibit memoranda.

11 5. **Compliance understanding.** I understand Plaintiff should not prematurely **present** section
12 128.7 subdiv. (c) sanctions briefing to any judicial officer until the twenty-one-calendar-day
13 period in subdiv. (c)(1) expires absent correction.

14 I declare under penalty of perjury under the laws of the State of California that the foregoing is
15 true and correct.

16 Executed May 1, 2026, at Rohnert Park, Sonoma County, California.

Dated: May 1, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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